



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35426098

Date: JAN. 21, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, an engineering project manager and entrepreneur, seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding that although the Beneficiary qualified for classification as an advanced degree professional and his endeavor has substantial merit, the Petitioner had not established that the Beneficiary's endeavor is of national importance, or that, on balance, a waiver of the required job offer, and thus of the labor certification, would be in the national interest. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Director discussed the Petitioner's business plan and recommendation letters. Regarding the former, the Director determined that the Petitioner did not adequately explain how he intends to realize the business plan's staffing and revenue projections, nor did he establish that the projections would result in a level of job growth or revenue generation that is commensurate with national importance. And although the Director acknowledged that the recommendation letters discussed the Petitioner's experience and achievements, the Director determined that the letters did not include information about the proposed endeavor or explain how it is nationally important.

The Director also addressed the various industry articles and reports and found that they did not discuss the Petitioner's endeavor. The Director noted that when determining national importance, the relevant question is not the importance of the industry, sector, or profession in which the individual will work; instead, we focus on "the specific endeavor that the foreign national proposes to undertake." *Id.* at 889.

In sum, the Director determined that the Petitioner did not substantiate that his specific business endeavor would trigger substantial positive economic benefits or that it would otherwise result in a potential prospective impact at the national importance level. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal. We adopt and affirm the Director's decision. See *Matter of Burbano*, 20 I&N Dec. 872, 874 (BIA 1994); see also *Giday v. INS*, 113 F.3d 230, 234 (D.C. Cir. 1997) (noting that the practice of adopting and affirming the decision below "is not only common practice, but universally accepted").

On appeal, the Petitioner argues that the Director "imposed novel substantive and evidentiary requirements beyond those set forth in the regulations." However, the Petitioner does not point to specific examples of this within the Director's denial. Importantly, the Petitioner also does not offer a detailed analysis explaining the particular ways in which the Director "imposed novel substantive and evidentiary requirements" in denying the petition.

The Petitioner further alleges that the Director "did not apply the proper standard of proof in this case, instead imposing a stricter standard . . . to the detriment of the Appellant." Except where a different standard is specified by law, the "preponderance of the evidence" is the standard of proof governing immigration benefit requests. See *Matter of Chawathe*, 25 I&N Dec. at 375 (AAO 2010). Accordingly, "preponderance of the evidence" is the standard of proof governing national interest waiver petitions. See generally 1 USCIS Policy Manual, E.4(B), <https://www.uscis.gov/policy-manual>. While the Petitioner asserts that he has provided evidence sufficient to demonstrate his eligibility for a national interest waiver, he does not further explain or identify a specific instance in which the Director applied a standard of proof other than the preponderance of evidence in denying the petition.

The Petitioner also asserts that the Director did not "give due regard" to certain evidence, such as his résumé, business plan, letters of recommendation, or the industry reports and articles, he previously submitted. However, as noted above, the Director specifically mentioned and discussed content in the Petitioner's business plan, and the Director explained why the submitted letters of recommendation were not sufficient to establish the proposed endeavor's national importance. Further, while the Petitioner stresses his credentials and work experience, such evidence addresses the Petitioner's knowledge, skills, education, and experience; these are considerations under *Dhanasar's* second prong, which "shifts the focus from the proposed endeavor to the foreign national." *Matter of Dhanasar*, 26 I&N Dec. at 890. Evidence of the Petitioner's credentials and experience in the field of engineering does not demonstrate the national importance of the proposed endeavor or establish that the impact of the endeavor would extend beyond the Petitioner's clients and employees. And while the Petitioner notes that he previously submitted articles and industry reports, which the Director also discussed, it is unclear how this evidence establishes the proposed endeavor's national importance given that none of these submissions pertain specifically to the endeavor in question, but rather more broadly discuss the benefits of small businesses and the importance of immigrant entrepreneurship.

As to the Petitioner's assertion that he will play a pivotal role in addressing an industry shortage of business professionals, the national shortage of business professionals is not, in and of itself, sufficient to establish the national importance of the Petitioner's endeavor. Further, the Department of Labor directly addresses U.S. worker shortages through the labor certification process.

Because the Petitioner has not established eligibility under the first prong of the *Dhanasar* test, we need not address his eligibility under the remaining prongs, and we hereby reserve them.¹ The burden of proof is on the Petitioner to establish that he meets each eligibility requirement of the benefit sought by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. at 375-376. The Petitioner has not done so here and, therefore, we conclude that he has not established eligibility for a national interest waiver as a matter of discretion.

ORDER: The appeal is dismissed.

¹ See *INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make “purely advisory findings” on issues that are unnecessary to the ultimate decision).